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|    |                                                                                                  | <p>and tax these costs. (See <i>Anthony v. Li</i> (2020) 47 Cal.App.5th 816, 824-825 [“if the parties wanted to allow recovery of the apportioned fee [by] the prevailing party as an item of cost, they were free to spell this out in their agreement,’ but such a provision will not be read into the agreement”].)</p> <p>The motion as to this item is <b>GRANTED</b> and this item of costs shall be stricken.</p> <p><u>Item No. 12: Models, Enlargements, and Photocopies of Exhibits:</u> Plaintiff contends it is unclear from Defendants’ Memorandum of Costs whether the \$1,960.95 in claimed costs are for exhibits actually used at trial. (See Code Civ. Proc., § 1033.5, subd. (a)(13).) The opposition shows the costs claimed are for models, exhibits, or enlargements used at trial. (See Opp. at p.10:11-14 and Ex. Q.) Plaintiff did not specifically address this item in the reply and thus appears to concede the charges are proper.</p> <p>The motion as to this item is <b>DENIED</b>.</p> <p>Based on the foregoing, the motion is <b>GRANTED</b> as to \$23,735 for post-offer expert witness fees and \$12,928.25 in court reporter fees, and thereto a total of \$36,663.25 is stricken from the memorandum of costs, which means \$17,711.94 of the \$54,375.19 sought in the memorandum of costs is awarded to Defendants.</p> <p>Counsel for Plaintiff shall give notice of this ruling.</p> |
| 8. | <p><b><i>Health and Wellness Lifestyle Club, LLC. vs. Valentine</i></b></p> <p>2023-01358654</p> | <p>Before the court is the motion to tax costs on appeal filed by petitioner Health and Wellness Lifestyle Club, LLC (Petitioner) directed to certain costs claimed in the memorandum of costs on appeal filed by respondent Grove Point Investments, LLC (Respondent). As more fully set forth below, the motion is <b>GRANTED IN PART</b> and <b>DENIED IN PART</b>.</p> <p>By this motion Petitioner challenges item nos. 1, 2, 4, and 6 sought in Respondent’s memorandum of costs.</p> <p>A valid costs memorandum establishes a prima facie case for recovery. Thus, the burden is on the party moving to strike or tax costs to establish that each disputed item is not recoverable. (<i>Bach v. County of Butte</i> (1989) 215 Cal.App.3d 294, 308; see <i>Ladas v. California State Auto. Ass’n</i> (1993) 19 Cal.App.4th 761, 774-776.) Indeed, there is no requirement that copies of bills, invoices, statements or any other such documents be attached to the memorandum. Documentation must be submitted only when a party dissatisfied with the costs claimed in the</p>                                                                                                                                                                                                                                                                                                                                        |

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|    |                                                          | <p>memorandum challenges them by filing a motion to tax costs. (<i>Bach, supra</i>, 215 Cal.App.3d at p. 308.)</p> <p><u><i>Item 1 (Filing Fees)</i></u>: Filing fees are an authorized item of costs under California Rules of Court, rule 8.278. Here, the filing fees appear reasons. Prevailing on the motion that gave rise to the filing fee is not the governing standard. The filing fee itself appears reasonable, but the \$11.70 credit card processing fee has not been shown to be so. The motion therefore is <b>GRANTED IN PART</b> as to the \$11.70 credit card processing fee, but otherwise <b>DENIED</b>.</p> <p><u><i>Item 2 (Preparation of Original and Copies of Clerk's Transcript or Appendix)</i></u>: The entire sum paid for the record is recoverable. (<i>Alan S. v. Superior Court</i> (2009) 172 Cal.App.4th 238, 261–262.) Petitioner has failed to establish any basis for taxing or striking this item, and Respondent has presented evidence to show the amount sought is the amount paid to the Superior Court for the record. The Motion therefore <b>DENIED</b> as to this item.</p> <p><u><i>Item 4 (Printing and Copying of Briefs)</i></u>: Respondent has failed to show why \$200 in delivery fees for delivery to a residence in Miami, or a \$30 expedite fee, was reasonable in context here. The costs for printing and copying briefs, however, are otherwise authorized by California Rules of Court, rule 8.278. The Motion therefore is <b>GRANTED</b> as to \$230 of the charges claimed, but otherwise <b>DENIED</b> as to this item.</p> <p><u><i>Item 6 (Transmitting, Filing, and Serving of Record, Briefs, and other Papers)</i></u>: Plaintiff appears to have conceded on reply that this charge is reasonable, and it appears to be. The motion as to this item is therefore <b>DENIED</b>.</p> <p>Based on the foregoing, the motion is <b>GRANTED IN PART</b> and <b>DENIED IN PART</b> such that \$241.70 is stricken from the \$2,394.30 Respondent sought and Respondent is awarded the balance of \$2,152.60 as recoverable appellate costs.</p> <p>Respondent's counsel is ordered to give notice of this ruling.</p> |
| 9. | <p><b><i>Richey vs. Roberts</i></b></p> <p>06CC11271</p> | <p>Before the court is the motion for charging order and to appoint sheriff with power of sale filed by judgment creditor assignee Robert L. Smith DBA Commercial Judgment Recovery (Creditor). As more fully set forth below, the motion is <b>DENIED</b>.</p> <p>Creditor brings the motion pursuant to Code of Civil Procedure sections 708.310 and 708.320, and California</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

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|  | <p>Corporations Code section 17302. The court first notes Corporations Code section 17302 was repealed on January 1, 2014, and is therefore not applicable. The remaining sections cited by Creditor permit the court to issue a charging order only against a judgment debtor's interest in a limited liability company (LLC). The code sections cited do not permit the court to appoint a sheriff to seize and sell a debtor's interest in an LLC or to sell the assets of a non-debtor/non-party LLC.</p> <p>A motion for a charging order must be served upon all the members of an LLC or the LLC itself. (Code Civ. Proc., § 708.320.) The proof of service only purports to show service on debtor Timoth N. Roberts (Debtor). Creditor has provided no evidence Debtor is a member of the LLC, let alone the sole member of the LLC. The sole California Secretary of State filing Creditor produced is from October 12, 1999, and lists Debtor as the agent for service of process of Victoria Partners, LLC, with the organizer being Gregory N. Weiler. (Smith Decl., Ex. A.) Nothing in this document establishes Debtor is a member of Victoria Partners, LLC, let alone the sole member. Moreover, this document is nearly 27 years old and no evidence is presented to show what is reported on this document remains current. If Victoria Partners, LLC is still a viable, going concern, it was required to make periodic filings with the Secretary of State that would be much more current. The evidence presented is not sufficient to show any ownership interest in the LLC, or proper service on the LLC or each of its members.</p> <p>The court also is concerned the motion was not actually served on Debtor. Creditor has not provided any information as to why Debtor was served at 102 E. Oceanfront, Newport Beach, CA 92661. Creditor previously filed a proof of service of an application for renewed judgment on February 5, 2026, which showed service of Debtor at 1909 W Balboa Blvd., Newport Beach, CA 92663. (ROA 166.) A Writ of Execution filed on August 12, 2025, showed Debtor being served at 19368 Mesa Drive, Villa Park, CA 92861. (ROA 153.) The grant deed for the Property states mailings must be sent to 130 McCormick Ave., Ste. 104, Costa Mesa, CA 92626. (Smith Decl., Ex. D.) The inconsistency between the addresses without any explanation raises some concerns Debtor actually was served the Motion.</p> <p>As there is no evidence all the required parties were served, that Debtor has any ownership interest in the subject LLC, and as Creditor has not provided a basis which permits the</p> |
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|     |                                                                                    | <p>court to allow a sheriff to sell a debtor's interest in an LLC or the assets of a non-debtor/non-party LLC, the Motion is <b>DENIED</b>.</p> <p>The court further notes Creditor filed what appears to be an identical motion that is scheduled next week for June 11, 2026. The court orders that motion <b>OFF CALENDAR</b> unless Creditor appears at today's hearing to show good cause as to why that motion should not be ordered off calendar as a duplicative filing.</p> <p>Finally, Creditor is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 10. | <p><b>Jamboree Center 5 LLC vs. Carlyle Capital Group</b></p> <p>2025-01498196</p> | <p>Before the court is the unopposed motion for an award of contractual attorney fees filed by plaintiff Jamboree Center 5 LLC (Plaintiff) against defendants Carlyle Capital Group and Carlyle Capital Fund Inc. (collectively, Defendants). As more fully set further below, the motion is <b>GRANTED</b> in the reduced amount of \$27,739.</p> <p>Contractual attorney fees are recoverable as costs to the prevailing party. (Code Civ. Proc., § 1033.5, subd. (a)(10)(A); Civ. Code § 1717, subd. (a),(b).) Having prevailed at trial on the parties' written lease, dated October 16, 2024, the court finds Plaintiff is the prevailing party entitled to reasonable attorney fees pursuant to the attorney fee provision in the lease. (Comp., Exh. 1 at § 14.5.)</p> <p>The question becomes whether the \$36,179 in attorney fees Plaintiff seeks is reasonable. Generally, courts employ the lodestar method to determine if attorney fees are reasonable, which involves multiplying the reasonable rate of services by the number of hours spent on the case. (<i>Nichols v. City of Taft</i> (2007) 155 Cal.App.4th 1233, 1242.) The party seeking attorney fees is not entitled to all hours they claim in an attorney fee request and must prove the hours sought are reasonable and necessary. (<i>Concepcion v. Amscan Holdings, Inc.</i> (2014) 223 Cal.App.4th 1309, 1320.)</p> <p><u>Hourly rates:</u> A "reasonable" hourly rate used to calculate the lodestar is the prevailing rate for similar work in the community where the court is located. (<i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 695-696.) Plaintiff seeks attorney hourly rates ranging from \$475 to \$625, and paralegal hourly rates ranging from \$200 to \$295. Although Plaintiff produced no evidence of the skill or experience of each of the attorneys and paralegals involved, or the prevailing rates for attorneys in Orange County for unlawful detainer work, based on its experience,</p> |